

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jose S. Franco
(Covering for Honorable Jeffrey B. El-Hajj)**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: September 15, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 Line 3	25CV462143	Wells Fargo Bank, N.A. v. Jack Delagdo, an Individual	Plaintiff's Motion to Vacate Dismissal Under C.C.P. § 664.6 and Enter Judgment Pursuant to Stipulation Plaintiff's unopposed motion to vacate dismissal under section Code of Civil Procedure section 664.6 and enter judgment pursuant to stipulation was filed on June 10, 2026, with proof of service by mail. Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment in 2025, under which Defendant agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates Defendant stopped making payments after the first payment was made. On good cause shown, the motion is GRANTED. The dismissal order entered March 24, 2026 is set aside. Plaintiff (Moving Party) is to submit a proposed order and proposed judgment, indicating damages/outstanding amount of \$6,348.00 and costs of \$315.00 for a total of \$6,663.00.
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9:00 Line 4,5	25CV474602	Scott Johnson v. Pekoe, LLC, a California Limited Liability Company	Plaintiff's Motion to Compel Verified, Unobjected-to Further Responses to Form Interrogatories, Set One and for Sanctions Plaintiff's Motion to Compel Verified, Unobjected-to Further Responses to Plaintiff's Request for Production, Set One and for Sanctions. Plaintiff filed two motions to compel: (1) compel verified and unobjected-to further responses to form interrogatories (Code Civ. Proc., § 2030.290) and (2) compel verified, unobjected-to responses for requests for production (Code Civ. Proc., § 2031.300, subd. (b)) on February 19, 2026. Defendant's opposition to both motions were filed on September 1, 2026. Plaintiff's Reply to both motions was filed on September 8, 2026. Notice and service were proper. The court has considered the filings of the parties related to these two motions, including the concurrently filed declarations, statements, and exhibits. Plaintiff served the Request for Form Interrogatories, Set One and Requests for Production, Set One on Defendant on December 12, 2025, and responses were due on January 14, 2026. Defendant served unverified responses on January 26, 2026. A meet and confer occurred sometime after that date. Verification of the responses did not occur until August 30 and 31, 2026. The fact that the verified responses have been provided does not render these motions moot. The trial court retains the discretion and authority to hear and grant a motion to compel responses under Cal Code Civ Proc § 2030.290 and requests for production under Cal Code Civ Proc § 2030.300. When responses and requests are unverified, they do not constitute substantial compliance, and the propounding party remains entitled to seek an order compelling a response without objections and to seek sanctions even if the responses and requests are later verified.
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			Plaintiff's Motion to Compel Verified, Unobjected-to Further Responses to Form Interrogatories, Set One is GRANTED. Sanctions are imposed \$1,150.55 and due within 30 days of service of this order. This figure represents 1.5 hours of Plaintiff's counsel's work on this motion and the filing fee and will not include time for preparation of any drafts of the motion. Motion to Compel Verified, Unobjected-to Further Responses to Plaintiff's Request for Production, Set One is GRANTED. Sanctions are imposed \$1,150.55 and due within 30 days of service of this order. This figure represents 1.5 hours of Plaintiff's counsel's work on this motion and the filing fee and will not include time for preparation of any drafts of the motion. Plaintiff is ordered to prepare and submit the orders.
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